Brussels I bis Regulation (EU) 1215/2012

- Jurisdiction, recognition and enforcement in civil and commercial matters
- Applies from 10 January 2015 (Art. 81)
- Forum vs. applicable law: two different questions

Scope of application (Art. 1)

- Civil and commercial matters, whatever the nature of the court
- Excluded: revenue, customs, administrative matters, acta iure imperii
- Also excluded: status of natural persons, matrimonial property, insolvency, arbitration

General rule: defendant's domicile (Art. 4)

- Persons domiciled in a Member State are sued in the courts of that State
- Nationality is irrelevant: actor sequitur forum rei
- Domicile of companies: statutory seat, central administration or principal place of business (Art. 63)

Special jurisdiction (Art. 7)

- Contract: place of performance of the obligation in question (Art. 7(1))
- Sale of goods: place of delivery; services: place where services were provided
- Tort: place where the harmful event occurred or may occur (Art. 7(2)) — Bier/Mines de potasse: event and damage

Exclusive jurisdiction and lis pendens

- Art. 24: rights in rem in immovable property, company validity, public registers, IP registration, enforcement
- Art. 25: choice-of-court agreements (formal requirements)
- Art. 29: lis pendens — court first seised; Art. 31(2) exception for the chosen court